



Income Tax Department

Ministry of Finance, Government of India

Recovery of tax arrear in respect of non-resident from his assets.

422. Irrespective of anything contained in section 304(1) or (5), where the person entitled to the income referred to in section 9(2) is a non-resident, the tax chargeable thereon, whether in his name or in the name of his agent who is liable as a representative assessee—

- (a) may be recovered by deduction under the provisions of Chapter XIX-B; and
- (b) any arrears of tax may also be recovered as per the provisions of this Act from any assets of the non-resident which are, or may at any time come, within India.

